

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED**

2260 N Street, Merced  
627 W. 21<sup>st</sup> Street, Merced  
1159 G Street, Los Banos

Tuesday, June 02, 2026

**Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:**

**Courtroom 8 – Hon. Stephanie L. Jamieson**

**Courtroom 9 – Commissioner David Foster**

**Courtroom 12 – Hon. Jennifer O. Trimble**

**Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.**

**IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.**

**The tentative rulings for specific calendars follow:**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings  
Hon. Stephanie L. Jamieson  
Courtroom 8

627 W. 21<sup>st</sup> Street, Merced

Tuesday, June 02, 2026  
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
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| 25CV-07275 | Rose Ofili vs Hyundai Motor America |
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Motion to Compel Binding Arbitration

**The motion to compel arbitration is DENIED.**

**Plaintiff's objection to the Declaration of Ameripour in Support of Defendant's Motion to Compel is OVERRULED.**

**Plaintiff's objection to the Declaration of Ameripour in Support of Defendant's Reply is SUSTAINED.**

**Even when an agreement provides that it is governed by the FAA, courts must first apply state law principles in determining whether the parties entered into an agreement to arbitrate. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51.)**

**When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense**

bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

However, the burden of production may shift in a three-step process. (See *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165–166.)

Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) If Defendant meets its initial prima facie burden and the Plaintiff disputes the agreement, then the Plaintiff bears the burden of producing evidence to challenge the authenticity of the agreement. (see *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

Plaintiff may do this by declaring under penalty of perjury that they never saw or do not remember seeing the agreement. (see *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165; *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 52.)

Defendant established its initial burden by reciting the terms in its moving papers. This shifted the burden to Plaintiff to challenge the authenticity of the agreement. Here, Plaintiff has declared that they never looked at the Warranty Booklet that contained the arbitration agreement and had never seen the document before. (Ofili Decl. ¶¶ 14, 15.) This is sufficient to shift the burden back to Defendant to authenticate the document. The ultimate burden of proving the agreement by a preponderance of the evidence remains with the moving party. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

In reply, Defendant states “Plaintiff has not proved the falsity of the purported agreement, as there is no evidence provided by Plaintiff to contradict the fact that the arbitration agreement submitted by Defendant is what Defendant purports it to be.” (Reply 2:2-4.) This misunderstands Plaintiff’s burden and Defendant’s ultimate burden. By Plaintiff declaring they had never seen agreement and did not know it existed it was sufficient to shift the burden back to Defendant. Instead of then offering admissible evidence authenticating the document, Defendant incorrectly states Plaintiff had not met their burden.

It is Defendant that has failed to meet their burden to authenticate the document and show that there is a valid agreement to arbitrate.

Accordingly, the motion to compel arbitration is DENIED.

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26CV-02049                      Petition of: Tatianna Muniz

Order to Show Cause Re: Name Change

Appearance required.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law & Motion/ Petition Name Change  
Hon. Jennifer O Trimble  
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 02, 2026  
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
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| 25CV-04489 | Angel Olivares Escobar, et al.vs Roger Brewer, Junior |
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Order Show Cause Re: Dismissal

**Appearance required.**

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| 24CV-01187 | Evelyn Lemus vs. Los Banos Unified School District |
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Order Show Cause Re: Dismissal

**Appearance required.**

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| 25CV-00397 | Randall Orozco vs. Teixeira and Sons, LLC, et al. |
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Motion to Compel Further Responses to Request for Admission, Set Two

**Plaintiff's motion to compel further responses to Requests for Admission, Set Two, is DENIED.**

**Defendant's responses at issue are substantially code-compliant. Code of Civil Procedure section 2033.220 requires that each answer in response to a request for admission be as complete and straightforward as the information reasonably available to the responding party permits. Section 2033.220 further requires that a responding party (1) admit so much of a request as is true, either as expressed in the request itself, or as reasonably and clearly qualified by the responding party, (2) deny so much of the matter involved in the request as untrue, or (3) specify so much of which the responding party lacks sufficient information or knowledge. (See Code Civ. Proc. § 2033.220, subd. (b)(1)-(3).) Defendant's responses are substantially code-compliant as they are reasonably qualified as they state they are based on the information available after a reasonable inquiry.**

**Although Plaintiff does not prevail on their motion, as the responses were not simple admissions or denials Plaintiff was justified in bringing the instant motion and Defendant was justified in opposing the motion.**

**Accordingly, all request for monetary sanctions is DENIED.**

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25CV-05994

Christopher Smith vs Central Valley Concrete, Inc., et al.

Motion to Compel Arbitration and Stay of Proceedings

**The motion to compel arbitration and stay proceedings is GRANTED.**

**The court finds there is an agreement to arbitrate and that the terms of the arbitration agreement are not unconscionable.**

**The court will sign the order lodged with the court on January 27, 2026.**

**Plaintiff's request to file a late opposition is DENIED. The court does not find mistake, inadvertence, or excusable neglect under these circumstances excusing the failure to timely file an opposition.**

**An arbitration status conference is set for December 4, 2026, at 1:30 p.m. in Courtroom 12.**

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26CV-02057

Petition of: Alan Orozco-Ramirez, et al.

Order Show Cause Re: Name Change

**Appearance required.**

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26CV-02085

Court Trial: Unlawful Detainer

**Appearance required.**

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